

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS\_\_\_\_\_  
DAVID MANGUM,

Plaintiff,

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT, POLICE OFFICER  
CHRISTOPHER ROSKOSKY, SERGEANT JOHN  
DOE, POLICE OFFICERS DOE 1-4,Defendants.  
\_\_\_\_\_X

Index No.:

Date Purchased:

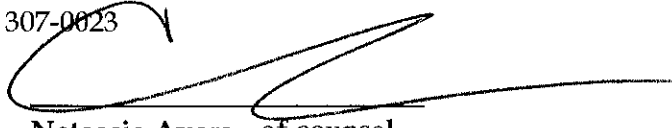
**SUMMONS**Plaintiff(s) designate(s)  
QUEENS COUNTY  
as the place of trial.The basis of venue is Plaintiff  
residence and Location of the  
Incident.

To the above named Defendant(s):

*You are hereby summoned* to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within **twenty** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 28, 2017  
New York, New York

THIS IS AN E-FILE CASE

ENTER YOUR APPEARANCE AT  
[HTTPS://IAPPS.COURTS.STATE.NY.US.NYSCEF](https://iapps.courts.state.ny.us/nyscef)MICHAEL J. AVILES & ASSOCIATES, LLC  
Attorneys for Plaintiff  
145 Hudson Street, Suite 5C  
New York, New York 10013  
(212) 307-0023By: 

Natascia Ayers - of counsel

Defendant(s) address(es):  
THE CITY OF NEW YORK  
New York City Law Department  
100 Church Street  
New York, New York 10007NEW YORK CITY POLICE DEPARTMENT  
POLICE OFFICER CHRISTOPHER ROSKOSKY,  
SERGEANT JOHN DOE, POLICE OFFICERS JOHN DOE 1-2  
100 Church Street  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

\_\_\_\_\_  
DAVID MANGUM

X

Index #.:

Plaintiff,

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT, POLICE OFFICER  
CHRISTOPHER ROSKOSKY, SERGEANT JOHN  
DOE, POLICE OFFICERS DOE 1-4,

Defendants,

\_\_\_\_\_  
X

Plaintiff, DAVID MANGUM, by his attorneys, Michael J. Aviles & Associates, LLC.,  
complaining of the defendants, THE CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT, POLICE OFFICER CHRISTOPHER ROSKOSKY, SERGEANT  
JOHN DOE, POLICE OFFICERS DOE 1-4, respectfully allege, upon information and belief, as  
follows:

**THE PARTIES**

1. At all times hereinafter mentioned, plaintiff, DAVID MANGUM was and still is a resident of the County of Queens, and State of New York.
2. At all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, by its agents, servants and/or employees operated and maintained police forces charged

with the duty and responsibility of maintaining the peace in the City of New York.

4. At all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, among other things, operates a police department and employs police officers.

5. At all times hereinafter mentioned, the defendant POLICE OFFICER CHRISTOPHER ROSKOSKY, is a police officer employed by the CITY OF NEW YORK.

6. At all times hereinafter mentioned, the defendant SERGEANT JOHN DOE is intended to be a sergeant.

7. At all times hereinafter mentioned, the defendant P.O. John Doe 1 is intended to be a police officer.

8. At all times hereinafter mentioned, the defendant P.O. John Doe 2 is intended to be a police officer.

9. At all times hereinafter mentioned, the defendant P.O. John Doe 3 is intended to be a police officer.

10. At all times hereinafter mentioned, the defendant P.O. John Doe 4 is intended to be a police officer.

11. At all times hereinafter mentioned, all of the defendant police officers are intended to be the police officers involved the arrest of DAVID MAGNUM on April 10, 2016, at plaintiff's home located at 25-35 Butler Street, East Elmhurst, New York .

12. At all times hereinafter mentioned, each of the above-defendants was acting in the scope of his employment and as an agent, servant and employee of the defendant THE CITY OF NEW YORK.

13. That upon information and belief on April 10, 2016, the police were called by Natalie Knott, the mother of DAVID MANGUM's 3 children, complaining that DAVID MANGUM had spanked his child, Denzel Mangum.

14. On or about April 10, 2016, plaintiff was at home when the defendants, entered the aforementioned premises and, without cause of justification, proceeded to assault and abuse, place under arrest, and to cause injury to the plaintiff.

15. The police arrested the plaintiff in connection with this incident and wrongfully charged DAVID MAGNUM with charges including: Assault in the Second Degree PL 120.05-2, PL120.05-9 and endangering the welfare of a child PL 260.10-1 based upon information defendants knew at the time was untrue and that plaintiff had not assaulted or endangered his child.

16. Defendants falsified their findings as reflected in their reports all for the purpose of arresting plaintiff, causing great injury to the plaintiff including extreme financial hardship. The Seargeant falsely claimed that plaintiff's son, Denzel, reported that his father had hit him in the eye and with a belt, when in fact, Denzel never made such a report and was sleeping at the time.

17. Defendants failed to conduct any kind of investigation in accordance with proper police procedure, saw that there were no injuries or signs of abuse on Denzel, knew that that plaintiff had never injured his son, and despite this, abused their power and arrested plaintiff.

18. Said plaintiff was arrested due to the fact that plaintiff was non-caucasian and was involved in a previous arrest 3 years prior by the same SERGEANT regarding minor charges for which plaintiff was found not guilty.

19. There was no probable cause for any of the allegations made by any of the individual defendants of criminal or other improper conduct by the plaintiff and defendants abused their power, causing plaintiff to be taken away from his children although he was the primary caretaker and had primary custody, causing plaintiff to be removed from his own home, to make arrangements to live elsewhere while paying for rent where is children live, causing his

children to be under the care of an unfit mother who called the police in the first place because she was asked to leave the apartment due to her behavior demonstrating her lack of fitness as a mother, cost plaintiff financial hardship in that he has had to pay an attorney to defend him and for bail, damaged his reputation, and other related damages.

20. Prior to the commencement of this action and within ninety days of the occurrence complained of herein, to wit, on July 7, 2016, plaintiff served a Notice of Claim upon the City of New York.

21. That the City of New York requested oral examination of the plaintiffs, and the plaintiffs so appeared on January 25 2017

22. That the City of New York never requested a physical examination of the plaintiff and plaintiff was willing to appear if so requested.

23. Plaintiffs have complied with Section 50 *et seq.* of the General Municipal Law and is therefore permitted to bring this action.

24. That this action is being commenced within a year and ninety days of the occurrence complained of and is thus timely brought.

25. As a result of the defendants' conduct, plaintiff was incarcerated for one day without any basis; false criminal charges were brought against him; psychological and economic injury; mental anguish and distress; and claimant has been otherwise damaged.

26. Defendants and their agents, servants and employees filed false claims, abused their power, police report and false documents to support a malicious and false arrest and continuing prosecution of DAVID MANGUM.

27. The defendants wrongfully and without any cause or justification assaulted and battered the plaintiffs causing them to be handcuffed, battered and otherwise causing damaged as aforesaid.

28. That the defendants' conduct was willful, outrageous and/ or grossly negligent and violated public policy of the State of New York and common decency.

29. That the aforesaid acts and/or omissions of the individual defendants were pursuant to an agreement and/or conspiracy among them to, while acting under color of state law, violate the civil rights of the plaintiffs and other non-caucasian persons.

30. That the aforesaid acts and/or omissions of the individual defendants caused the plaintiff severe personal injuries, social stigma, damage to reputation, mental anguish and distress, fear, anxiety, deprivation of his liberty through his arrest and incarceration, deprivation of raising his children due to the restraining order issued against him based upon the false malicious arrest and charges and prosecution, has been forced to find lodgings and continue to pay his rent where the children live and his reputation and dignity and family relationship has been seriously damaged and hurt and plaintiff has suffered financial hardship, required to pay a criminal attorney to defend him in this case and lost time and money dealing with criminal and family court proceedings caused by conduct which forms the basis of these claims.

31. That the aforesaid acts and/or omissions of the individual defendants violated the plaintiff's civil rights, as said rights are secured by 42 U.S.C. 1981, 1983, 1985(2)(3), 1986 and 1988, and the Constitutions of the State of New York and the United States, including the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereto, said civil rights including, but not limited to: the right to be free from arbitrary and groundless arrest; the right to be free from cruel and unusual punishment and summary punishment; the right to free in his person from unlawful restraints on his movement; the right to not be subjected to imprisonment without due process of law and the right to enjoy equal protection of the laws; the right to have all the legal rights enjoyed by caucasian persons, including the right to be secure in his person and/or property; the right to have persons entrusted with legal authority to act to

enforce his civil rights to either act to enforce such rights or be themselves adjudicated as having violated the plaintiff's civil rights and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

32. There was no probable cause or other legal excuse or privilege for the aforesaid alleged instances of false arrest, false imprisonment, and intentional infliction of emotional distress upon said plaintiff.

33. That the individual defendants falsely represented to other employees of the defendant CITY, and the Office of the District Attorney of New York County, that plaintiff committed the aforesaid alleged criminal offense(s) in order to make it appear that there had been a justification for the arresting, imprisoning, on the plaintiff, and the criminal prosecution of said plaintiff, in order to protect the individual defendants, or certain of such individual defendants, from civil and criminal liability for such acts.

34. That various employees of the defendant, CITY, knew that the individual defendants, or certain of the individual defendants, falsely represented to other employees of the defendant CITY that said plaintiff had committed the criminal offenses previously alleged in order to make it appear that there had been a justification for the arresting and imprisoning on said plaintiff, and the criminal prosecution of said plaintiff, in order to protect the individual defendants, or certain of the individual defendants, from civil and criminal liability for such acts, and said other employees of the defendant, CITY, violated the proper procedures of defendant CITY in failing to disclose such false statements by the individual defendants, or certain of the individual defendants, and/or otherwise assisted the individual defendants, or some of them, in making such false statements, all for the purpose of protecting the individual defendants, or some of them, from civil and criminal liability for the arresting and imprisoning of said plaintiffs, and for the criminal prosecution of said plaintiffs.

35. By the actions described above, the defendant CITY, by the acts of its employees, including the individual defendants, or some of the individual defendants, in furtherance of the official policies and/or customs of defendant CITY deprived said plaintiff of the following clearly established and well-settled constitutional rights:

a) Fifth and Fourteenth Amendments of the United States Constitution, which protects the plaintiff from deprivation of liberty and summary punishment without due process of law;

b) Freedom from the deprivation of liberty and summary punishment without due process of the law, as said rights are secured by the Fifth and Fourteenth Amendments of the United States Constitution;

36. The individual defendants, or some of them, subjected said plaintiff to the deprivations set forth aforesaid, either maliciously or by acting with a reckless disregard for whether plaintiff's rights would be violated by their actions.

37. The individual defendants, or some of them, committed the foregoing acts or omissions without just and legal cause, thereby violating the rights of said plaintiff under the laws and Constitutions of the United States, in particular the First, Fourth, Fifth and Fourteenth Amendments, and his rights under the Constitution and laws of the State of New York.

38. In committing the aforesaid acts or omissions, the individual defendants, acted illegally and directly violated the rules and regulations of New York City Police Department and failed to enforce said rules and regulations, in particular those rules and regulations regarding the proper procedures to follow prior to, during and after an arrest, the proper grounds for making an arrest, the proper means and manner in which to question a person in connection with a law enforcement investigation and the other appropriate rules and regulations governing defendants that were applicable in the circumstances.



39. That the aforesaid alleged acts and/or omissions of the individual defendants were pursuant to, and in furtherance of, an official policy or custom of the defendant CITY.

40. Defendant failed to properly hire, train and supervise police officers in a fashion that would encourage police officers not to engage in the unjustified, unreasonable, illegal and abusive use of arrest powers, and in ratifying, justifying, and protecting from civil and criminal liability the acts of those police officers that are unjustified, unreasonable and involve the illegal or abusive use of force and search and arrest powers.

41. In addition to permitting a practice of unjustified, unreasonable and illegal and abuse of powers against non-caucasian persons, the defendant CITY failed to maintain a proper system for the investigation of complaints of unjustified, unreasonable and illegal and abusive use arrest powers by police officers.

42. The defendant CITY has maintained systems for the investigation of complaints of unjustified, unreasonable and illegal and abusive use of force and search and arrest powers by police officers which have failed to properly identify such actions by its police officers and subject police officers who commit such acts to closer supervision, remedial training, discipline, or restraint, to the extent that it has become the *de facto* policy and custom of said defendant to tolerate and ratify the unjustified, unreasonable and illegal use of arrest powers by its police officers.

43. That there also exists, as a policy and custom of the defendant CITY a "code of silence" which is pervasive throughout said defendant's police department. Said "code of silence" is abided to by virtually all police officers of all ranks, including supervisory police officers, and involves the refusal of police officers to give honest testimony, or any testimony whatsoever, about incidents involving illegal, improper, and abusive conduct by police officers

that violate persons, such as the plaintiff's, civil rights. Said "code of silence" is tolerated, if not encouraged, by defendant CITY as a means to prevent effective criminal prosecution of those police officers who engage in illegal conduct and to shield defendant CITY from possible civil liability for the acts of those police officers who violate persons, such as the plaintiff's, civil rights.

44. The foregoing acts, omissions, systemic flaws, policies, and customs of the defendant CITY caused said defendant's police officers to believe that unjustified, unreasonable and illegal use of arrest powers would not be aggressively, honestly and properly investigated, and that such acts as a matter of policy and custom would be ratified, concealed, and justified by defendant CITY, with the foreseeable result that defendant CITY's police officers are more likely to engage in the unjustified, unreasonable and illegal and abusive use of arrest powers, particularly against non-caucasians.

45. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies and customs of the defendant, CITY, said defendant's employees, including all relevant individual defendants, falsely imprison, swear out false criminal complaints against, intentionally inflict emotional distress upon, trespass upon the person of, and in a grossly negligent and wantonly reckless manner inflict personal injuries upon the plaintiffs.

46. The defendant, CITY, by reason of its aforesaid policies, customs, acts, omissions, and its ratification of the acts of its agents, servants and/or employees, has deprived said plaintiff of rights and liberties secured to him through the Constitution and Laws of the United States of America and 42 U.S.C. Section 1983 and has caused said plaintiff great pain and physical, emotional, and psychological injuries.

47. That the aforesaid acts, ratifications, omissions, customs and policies of the defendant CITY were done with a deliberate and/or grossly negligent indifference to the

protection of the federally protected civil rights of persons such as the plaintiff and said acts, ratifications, omissions, customs and policies of defendant CITY were the direct and proximate cause of the aforesaid violations of the civil rights secured to said plaintiff under 42 U.S.C. Sections 1981, 1983, 1985(2)(3), 1986 and 1988.

48. That as a result of the foregoing, the plaintiff was caused to suffer damages in an amount that would be beyond the jurisdiction of any Court of this State that would otherwise have jurisdiction over this matter.

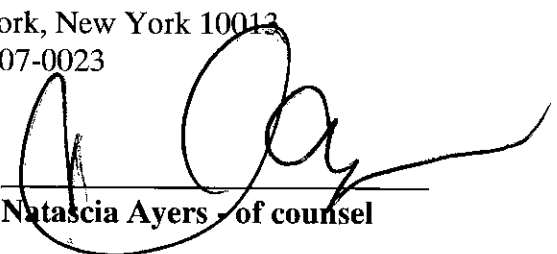
49. The charges against plaintiff were ultimately dismissed as unfounded and plaintiff has returned home to his children and regained primary custody of his children.

WHEREFORE, plaintiff demands judgment of defendants in each Cause of Action for a sum of money exceeding the jurisdiction of all lower Courts, together with interest, attorney fees, costs and disbursements of this action and FIVE MILLION DOLLARS in Punitive Damages.

DATED: NEW YORK, NEW YORK  
March 28, 2017

**MICHAEL J. AVILES & ASSOCIATES,**  
Attorneys for Plaintiff  
145 Hudson Street - 5C  
New York, New York 10013  
(212) 307-0023

By:

  
Natascia Ayers - of counsel

**VERIFICATION**

Natascia Ayers, Esq., an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

That I am of counsel to the law firm MICHAEL J. AVILES & ASSOCIATES LLC, the attorneys for the plaintiff(s) in this action.

That I have read the foregoing SUMMONS & COMPLAINT and know the contents thereof, and that the same is true to my knowledge except to those matters stated to be alleged upon information and belief, and as to those matters I believe them to be true.

That the sources of my information are investigation and records in the file. I affirm that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
March 28, 2017



NATASCIA AYERS